63-605 Income Deductions/Exclusions (Q&A)

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Dependent Care Vs Tuition Fees

A CalFresh recipient works full time. Her two children, one in first grade and one in kindergarten, receive all day care and educational instruction at a licensed child care center. Stage 3 child care pays the tuition fees up to the Regional Market Rate (RMR) for the program and the client pays the remaining tuition fees of $66. The information provided did not specify whether either child has special needs. The Quality Control review conclusion is that tuition is not an allowable income deduction for the CalFresh Program.

Section 63-233.2 states: "The dependent care cost will be allowed as a deduction when necessary for a household member to:

- Accept or continue employment;
- Comply with the CalFresh Employment and Training Program requirements; or
- Attend training or pursue education to prepare for employment".

QUESTION

Are tuition fees an allowable income deduction for the CalFresh program when the customer is participating in one of the activities outlined in Section 63-233.2?

ANSWER

A dependent care cost will be allowed as a deduction for a household member to accept or continue employment, for CalFresh Employment and Training purposes, or for training or education preparatory to employment.

Tuition is not a deductible expense. In this situation, it is the worker's responsibility to determine and/or differentiate tuition from after-school child care expenses. The burden of proof would be on the recipient to provide documentation for the after-school child care expense.

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